



**PINAKI GHOSH, 23 &
JAYANTA ROY, 23**
KOLKATA

Like any other couple, all they want is financial security and a home. Their families are aware of the relationship and have not stood in their way. "My father advised me that my focus in life should not be my sexuality but a good job," says Roy, an IT professional based in Kolkata. Ghosh, who works for an NGO, Pratya Gender Trust, is pursuing his postgraduation in environment studies. Says Ghosh, "Once travelling in a bus and talking to each other much in the fashion that lovers do, I heard a girl saying, looks like Dostana *chal raha hai*. We got down from the bus. But rest assured, now we will not do so. If I love him, then the world might as well know that. Who do we have to fear?"

and often have to listen to sniggering if they get too close to each other while taking public transport. It's the same with 40-year-old doctor Zahid Shafi Ansari and 43-year-old Ranjan Koul. They met five years ago on a gay chatting website and have been a picture of domesticity since then.

But if gay sex is coming out of the closet, lesbianism is still firmly locked up. "Society feels more threatened by

women more than men because they are seen as the upholder of traditional values," says Pramada Menon, founder-member of the Delhi-based Creating Resources for Empowerment in Action. It is no surprise, therefore, that suicide rate for lesbians in India is high. There were 24 documented cases of lesbian suicide pacts between 1996 and 2004 in Kerala alone. Most shocking was the case of two married women from Chennai, Christy Jayanthi Malar, 38, and Rukmani, 40, who set themselves on fire after years of harassment. Indeed, the law cannot wipe out years of prejudice against same-sex relationships. What will help is a change in society, brought about by courageous people like 30-year-old Rose, India's first transgender TV show host. "Earlier, I was looked upon as an object of ridicule. Today, people come to take my autograph," she says.

It is people like Rose who will take the LGBT community out of the little alcoves they have been forced into, whether it is the Azaad Bazaar in Bangalore, India's first store stocking

Muslim and Hindu fundamentalist groups have opposed the revocation. While the CPI(M) and the NCP support the Delhi High Court judgment, both the SP and the RJD are against such a move. "We should not change so much that we are ashamed of ourselves," says SP's Akhilesh Yadav. The question may be societal but the response is purely political.

by Priya Sahgal

Legal Victory

The judgment has given the community the right to live and love, but what does it mean?

INDIA IS THE 127th country in the world to decriminalise homosexuality. Nations such as Turkey, Saudi Arabia and Iran still ban it. South Africa is the only country which prohibits discrimination based on sexuality by stating so in the Constitution.

BY IMPLICATION, oral and anal sex between consenting adults in both heterosexual and homosexual cases have been legalised, which was not the case earlier.

BUT SECTION 377 of the IPC will continue to govern sodomy rape and paedophilia. The judgment defines an adult as 18 years and above.

THE VERDICT CALLS for the Government to repeal the section and offences like sodomy rape and paedophilia to be transferred to Sections 375 and 376 that deal with rape.

THERE IS STILL no clarity whether the judgment would apply only to Delhi or to the entire country. But the judgment has given a 'persuasive value' in such matters.

THE GOVERNMENT can appeal against the judgment in the Supreme Court which is unlikely, or it will have to take a view in the matter, if someone else approaches the apex court.